

**BEFORE THE
FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES**

Docket No. 25-24

SOUTHERN INTERNATIONAL CO., LTD., Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC, Respondent.

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S MOTION
TO COMPEL VERIFIED SUPPLEMENTAL DISCOVERY RESPONSES
AND COMPLETE DOCUMENT PRODUCTION**

Complainant Southern International Co., Ltd. ("SIC") respectfully moves under 46 C.F.R. §§ 502.69, 502.71, 502.141, 502.145, 502.146, 502.147(a)(6), and 502.150 for an order compelling Respondent Daynamez Group of Companies LLC ("Daynamez") to serve signed and verified supplemental discovery responses and to complete production of responsive documents and electronically stored information ("ESI").

Daynamez transmitted revised written responses and supplemental production on June 12, 2026. That package cured certain formal deficiencies by providing request-by-request RFP responses and assigning DAYNAMEZ- Bates identifiers to selected PDF materials. It did not cure the material deficiencies that remain after SIC's good-faith efforts to resolve the dispute without motion practice.

The remaining deficiencies are concrete and documented in the accompanying Appendix. Daynamez describes its June 12 Interrogatory answers as verified, although the document served on SIC contains no signature or verification by Zia Kamali or another authorized representative. Daynamez states that native Excel files and an Excel production-index tracker were produced, although its June 12 transmittal lists only PDF attachments. Daynamez substitutes a two-page, dispute-prepared transfer summary for the underlying bank-generated records and transaction-level information requested by SIC. It relies on PDF conversions, screenshots, and annotated litigation exhibits without producing reasonably available source records necessary to assess completeness and provenance. Its completeness statements conflict with its own identification of responsive materials that were not transmitted, and its production index does not accurately identify the complete Bates universe or map documents to SIC's actual RFPs.

SIC has narrowed this Motion to the discovery necessary to adjudicate SIC's Shipping Act claims and to test the live defenses and factual contentions on which Daynamez continues to rely. SIC seeks relief concerning Interrogatories Nos. 3, 6, 10, 11, 12, 14, 15, and 18; Request for Admission No. 12; and RFP Nos. 1, 2, 4, 5, 6, 13, 15 through 22, 26, and 27. The complete requests, Daynamez's complete response documents, proof of service, the production and transmittal records, the meet-and-confer record, and a request-by-request Statement of Remaining Discovery Deficiencies and Requested Relief are included in the Appendix at CMTC-0001 through CMTC-0310.

The requested discovery is proportional to the needs of this proceeding. It is confined to identified accounts and custodial sources, the relevant transaction period, specified spreadsheets and communications, the shipments and containers at issue, and the events or calculations on which Daynamez intends to rely. For contention-related discovery, Daynamez may state in a signed and verified response that it will not rely on the particular event, document, calculation, theory, or alleged loss in this proceeding.

Daynamez has not expressly stated whether it opposes this Motion. It has, however, maintained that its cure was complete and has not agreed to provide the remaining responses or production. SIC therefore understands the requested relief to be opposed.

I. RELEVANT BACKGROUND

On April 23, 2026, SIC served its First Requests for Production, First Set of Interrogatories, and First Requests for Admission on Daynamez. The requests presently at issue, together with the applicable instructions and original certificates of service, are reproduced in Appendix Exhibits 1 through 3. See App. Ex. 1, CMTC-0021-0026; App. Ex. 2, CMTC-0027-0032; App. Ex. 3, CMTC-0033-0036.

On May 27, 2026, Daynamez transmitted its original RFA responses, original Interrogatory answers, and document production. The production included four Word-format files transmitted through a file-transfer link and later identified in the Appendix by native-file placeholders. See App. Ex. 4, CMTC-0037-0042; App. Ex. 5, CMTC-0043-0049; App. Ex. 10, CMTC-0193-0198; App. Ex. 11, CMTC-0199-0203.

On May 29, 2026, after reviewing the May 27 materials, SIC served a detailed Discovery Deficiencies Letter and Attachment A identifying the principal deficiencies and requested cures. Between June 2 and June 9, SIC repeatedly attempted to narrow and resolve the dispute in writing. SIC asked Daynamez to identify the specific requests, objections, production categories, technical issues, and any proposed date-certain cure schedule. Daynamez's counsel responded generally that the requests were "massive," involved more than 500 shipments, and remained under review, but did not provide a request-specific plan. See App. Ex. 7, CMTC-0105-0138; App. Ex. 8, CMTC-0139-0156.

On June 12, 2026, counsel for Daynamez transmitted sixteen PDF attachments and stated, "This is my client's revised responses." The principal attachment was a document titled "Response to Attachment A and Provided Cure." Although that document bears a June 10 date, SIC's records reflect first receipt through the June 12 transmittal. The document states that native Excel files, an Excel production tracker, complete bank records, complete communications, and a complete production had been provided. See App. Ex. 6, CMTC-0050-0104; App. Ex. 12, CMTC-0204-0206; App. Ex. 13, CMTC-0207-0310.

Later on June 12, SIC served a Final Deficiency Letter and Schedule 1 identifying the remaining defects after reviewing Daynamez's June 12 package. SIC requested an item-by-item substantive response by June 17, 2026. On June 15, Daynamez's counsel acknowledged the correspondence and advised that he was out of town, was scheduled for a medical procedure on June 17, and would respond later than Wednesday. He did not provide a substantive response, identify any item Daynamez would cure, state any continuing request-specific objection, propose a date certain, or transmit additional

responsive materials before this Motion was filed. See App. Ex. 9, CMTC-0157–0192; Certification of Good-Faith Conference ¶¶ 11–13.

Daynamez's Counterclaim has been dismissed. See Order on Complainant's Motion to Dismiss Respondent's Counterclaim, Dkt. 39 (ALJ May 15, 2026); Notice Not to Review, Dkt. 40 (FMC June 16, 2026). SIC does not seek discovery solely concerning dismissed affirmative claims. To the extent Daynamez continues to rely on alleged SIC debt, Net/Net calculations, DGS or OOCL matters, shipment holds, reputational injury, business loss, indemnity, setoff, recoupment, or related transactions to support a live defense, contest causation, mitigate damages, or rebut SIC's claims, Daynamez must provide complete responses and supporting records. SIC does not concede that any affirmative recovery, setoff, recoupment, indemnity, or damages claim remains legally available to Daynamez.

The Appendix includes both rounds of Daynamez's production. The four May 27 Word files are submitted as exact companion native exhibits, identified by CMTC-NATIVE-0001 through CMTC-NATIVE-0004 and corresponding Bates-numbered placeholder pages. The June 12 PDFs retain Daynamez's original DAYNAMEZ-identifiers and bear separate CMTC pagination solely to identify their location in SIC's Appendix.

II. GOVERNING STANDARDS

Discovery extends to nonprivileged matters relevant to a party's claims or defenses and proportional to the needs of the proceeding. 46 C.F.R. § 502.141(e). A party must supplement or amend a discovery response when required by the Commission's rules or when the response is materially incomplete or incorrect. 46 C.F.R. § 502.141(k).

Interrogatories must be answered separately and fully in writing under oath to the extent not specifically objected to. The person making the answers must sign them, and counsel must sign any objections. A party relying on business records must identify those records in sufficient detail and may use that procedure only when the burden of deriving or ascertaining the answer is substantially the same for either party. 46 C.F.R. § 502.145(b), (d).

For each RFP item or category, the response must state that inspection and related activities will be permitted as requested or state a specific objection. ESI must be produced in the requested form unless that form is specifically objected to; otherwise, it must be produced in the form in which it is ordinarily maintained or in another reasonably usable form. Documents must be produced as maintained in the usual course of business or organized and labeled to correspond to the requests. 46 C.F.R. § 502.146.

An RFA response must fairly admit, deny, or qualify the substance of the matter requested. If a response does not comply, the Presiding Officer may order that the matter is admitted or that an amended answer be served. 46 C.F.R. § 502.147(a)(6).

An evasive or incomplete answer, disclosure, or response is treated as a failure to answer, disclose, or respond. 46 C.F.R. § 502.150(a)(1). A motion to compel must include a certification that the moving party has conferred or attempted to confer in good faith to obtain compliance without Commission action. 46 C.F.R. § 502.150(a)(2)(i). SIC has separately filed its Certification of Good-Faith Conference and also addresses consultation and opposition status below under 46 C.F.R. § 502.71(a).

III. ARGUMENT

A. Daynamez Must Serve Signed and Verified Interrogatory Answers, and Selected Answers Remain Incomplete.

Daynamez's June 12 response states that it provides "verified answers to all 18 Interrogatories." The PDF served on SIC contains no signature or verification by Zia Kamali or another authorized Daynamez representative and no separate signature by counsel adopting any objections that remain asserted. See App. Statement ¶¶ 9–12, CMTC-0006–0007; App. Ex. 6, CMTC-0096 and CMTC-0098.

Daynamez should be ordered to serve one consolidated set of answers to Interrogatories Nos. 1 through 18, signed by the person making the answers and verified under oath or by a declaration compliant with 28 U.S.C. § 1746, with counsel signing any objections that Daynamez continues to maintain.

The answers to Interrogatories Nos. 3, 6, 10, 11, 12, 14, 15, and 18 also remain incomplete for the request-specific reasons set out in the Statement. Interrogatory No. 3 asks Daynamez to identify public statements, dates, and responsible persons for Daynamez's use of "NVOCC" or similar transportation language; Daynamez attributes admitted website language to an overseas developer but does not identify the developer or the supporting records. Interrogatory No. 6 asks for Net/Net arrangements, rates, calculations, allocations, approvals, shipments, and supporting records; Daynamez relies on PDF calculations but did not transmit the native workbook it states was produced. Interrogatories Nos. 10 and 11 ask for each SIC payment received, its disposition, and each claimed downstream payment; SIC's possession of its outgoing wires does not answer how Daynamez received, recorded, allocated, or used those funds. Interrogatory No. 12 should be answered event by event for each hold, lien, detention, non-release event, or additional-payment demand on which Daynamez intends to rely. Interrogatories Nos. 14, 15, and 18 should be supplemented to the extent Daynamez intends to rely on alleged SIC debt, shipment loss, DGS or OOCL events, reputational injury, business loss, witnesses, documents, or calculations for any remaining issue. See App. Statement ¶¶ 33–54, CMTC-0011–0014.

Request for Admission No. 12 asks whether Daynamez communicated with Kargosmart Global Vietnam Co., Ltd. concerning one or more shipments at issue. Daynamez's original response denied the request. Its amended response states only that, "[t]o the extent any communication" occurred, it occurred in a stated capacity. That conditional formulation does not admit or deny whether the communication occurred. A signed amended response is required. See App. Statement ¶¶ 55–58, CMTC-0015; App. Ex. 3, CMTC-0035; App. Ex. 4, CMTC-0039; App. Ex. 6, CMTC-0058.

B. Daynamez Did Not Produce the Native or Source Records It Represented Were Produced.

SIC requested spreadsheets, ledgers, reconciliations, and data exports in native Excel or CSV format. Daynamez did not serve a specific objection to that requested form. Instead, its June 12 response states that native .xlsx files corresponding to the Net/Net and shipment-release spreadsheets and a companion Excel production-index tracker were "produced herewith." The June 12 transmittal identifies only PDF attachments. SIC received no Excel or CSV file. See App. Statement ¶¶ 13–16, CMTC-0007–0008; App. Ex. 12, CMTC-0205–0206.

The PDF renditions at DAYNAMEZ-000024 through DAYNAMEZ-000080 and DAYNAMEZ-000089 through DAYNAMEZ-000091 do not preserve formulas, workbook structure, hidden sheets, hidden rows or columns, comments, cell relationships, or file properties. Several tables are divided across PDF pages, impairing row-level review. Daynamez should produce the native files it represented were produced and map each file to its PDF rendition. If any source file is unavailable, Daynamez should provide a verified explanation identifying the source of the PDF and how it was generated.

Daynamez also produced selected emails, WhatsApp messages, spreadsheets, and the Agency Agreement as PDF conversions, screenshots, or documents bearing highlights, captions, or argumentative annotations. SIC does not ask the Presiding Officer at this stage to determine that any document was fabricated or altered, and SIC does not attribute any modification to a particular person. The issue is narrower: the PDF derivatives do not permit meaningful review of available source headers, attachments, message identifiers, thread context, document-family relationships, workbook structure, or whether litigation-added content formed part of the original record. See App. Statement ¶¶ 17–20, 63–74, CMTC-0008–0009, CMTC-0015–0017.

Daynamez should produce responsive communications in the form ordinarily maintained or another reasonably usable export preserving, to the extent reasonably available, complete headers or equivalent routing information, attachments, embedded objects, family relationships, and thread context. Daynamez should also produce a clean, unannotated copy of the Agency Agreement, available source and execution records, and responsive website-development materials within its possession, custody, or control. For any unavailable source form, a knowledgeable custodian should explain the source account, device, or repository searched, the collection or export method attempted, the conversion process used, and whether captions, annotations, highlights, or cropping were added for production.

C. The Financial Production Does Not Supply the Requested Payment Information or Supporting Records.

DAYNAMEZ-000001 through DAYNAMEZ-000002 consist of a two-page “TRANSFER OF FUNDS” summary prepared on June 8, 2026. The summary lists claimed outgoing payments, but it does not establish the corresponding incoming SIC payment, receiving-account entry, shipment, container, or invoice allocation, retained or unapplied amount, or ultimate disposition of each SIC remittance. See App. Statement ¶¶ 21–24, CMTC-0009; App. Ex. 13, CMTC-0208–0209.

The summary is not an underlying monthly statement, bank-generated transaction history, incoming wire record, outgoing wire or ACH confirmation, SWIFT or equivalent transaction detail, remittance record, or account ledger sufficient to verify the asserted transactions. SIC does not ask Daynamez to create a new business record under an RFP. It asks Daynamez to provide verified answers to Interrogatories Nos. 10 and 11 supplying the transaction-level information already requested, and to produce existing bank-generated records, ledgers, remittance records, spreadsheets, and transaction details sufficient to verify those answers.

Daynamez’s statement that SIC possesses its own outgoing payment records does not excuse production of Daynamez’s receiving-account and downstream-payment records, particularly where Daynamez affirmatively relies on alleged downstream

payments, Net/Net calculations, and alleged payment deficits. Reasonable redactions may be applied to unrelated transactions, subject to the Initial Order and Commission confidentiality requirements.

D. Daynamez's Completeness Representations Conflict with Its Actual Production.

Daynamez states that all responsive documents have been produced and that no responsive materials are being withheld. Its own response also identifies materials that were not transmitted or that Daynamez states can or will be produced, including native Excel files, an Excel production tracker, evidence concerning the website developer, a DGS debt notice, a House Bill of Lading surrender copy, and evidence of alleged internet publications. See App. Statement ¶¶ 25–32, CMTC-0009–0010; App. Ex. 6, CMTC-0052–0055, CMTC-0091–0098.

The production universe is also internally inconsistent. Portions of Daynamez's June 12 response state that the complete Bates-stamped production runs from DAYNAMEZ-000001 through DAYNAMEZ-000091; its production index maps documents through DAYNAMEZ-000097; and the June 12 package includes DAYNAMEZ-000098 through DAYNAMEZ-000103. See App. Ex. 6, CMTC-0052–0053, CMTC-0096, and CMTC-0098–0104; App. Ex. 12, CMTC-0205–0206; App. Ex. 13, CMTC-0305–0310.

The production index also maps document categories to RFP numbers in a manner that does not reliably correspond to the text of SIC's requests. Because Daynamez elected to organize and identify its production through an index, it should provide a corrected final inventory identifying each produced file or document category, Bates range, description, file format, responsive RFP number or numbers, custodian or source, production date, and whether a corresponding native or source file was produced.

These contradictions provide a specific factual basis for a limited declaration or verified supplemental response by Zia Kamali or another knowledgeable custodian concerning sources searched, collection and conversion methods, source-file availability, and identified materials that remain unproduced. Daynamez should also produce the DGS debt notice and identify or produce the referenced DGS HBL surrender copy if it intends to rely on those records in this proceeding; otherwise, it should state in a signed response that it will not rely on them. See App. Statement ¶¶ 79–82, CMTC-0018–0019.

E. SIC Satisfied Its Good-Faith Conference Obligations.

SIC served a detailed deficiency letter and request-by-request Attachment A on May 29 and engaged in written meet-and-confer efforts from June 2 through June 9. After receiving Daynamez's June 12 revised responses, SIC conducted a further review and served a Final Deficiency Letter and Schedule 1 identifying the remaining issues and requested cures. When Daynamez's counsel advised on June 15 that he was out of town and undergoing a medical procedure, SIC refrained from filing immediately. Daynamez provided no further substantive response, supplemental production, or date-certain cure plan. See App. Ex. 7, CMTC-0105–0138; App. Ex. 8, CMTC-0139–0156; App. Ex. 9, CMTC-0157–0192; Certification ¶¶ 4–13.

SIC did not ask Daynamez to consent to the filing of this Motion. SIC sought to determine whether Daynamez would provide the requested relief voluntarily, identify the relief or requests it opposed, and narrow the areas of disagreement. Based on Daynamez's failure to cure the remaining deficiencies and its failure to provide a request-

specific position after the Final Deficiency Letter, SIC reasonably understands the requested relief to be opposed. SIC has conferred or attempted to confer in good faith as required by 46 C.F.R. §§ 502.71(a) and 502.150(a)(2)(i).

IV. REQUESTED RELIEF

SIC respectfully requests that the Presiding Officer order Daynamez to:

1. Within seven calendar days, serve a consolidated set of answers to Interrogatories Nos. 1 through 18, signed by the person making the answers and verified under oath or by a declaration compliant with 28 U.S.C. § 1746, with counsel signing any remaining objections, and provide complete supplemental answers to Interrogatories Nos. 3, 6, 10, 11, 12, 14, 15, and 18 subject to the limitations stated in this Motion and the Appendix Statement;
2. Within seven calendar days, serve a signed amended response to RFA No. 12 that directly admits, denies, admits in part and denies in part, or states after reasonable inquiry that the information known or readily obtainable is insufficient to admit or deny whether the communication identified in the request occurred;
3. Within seven calendar days, serve corrected written responses to RFP Nos. 1, 2, 4, 5, 6, 13, 15 through 22, 26, and 27, quoting each request and stating whether responsive materials have been produced, do not exist after reasonable inquiry, remain to be produced, are being withheld, or are subject to a specifically stated objection;
4. Within ten calendar days, produce the native spreadsheet files and represented Excel production tracker, reasonably available source-format communications, available WhatsApp exports, clean unannotated Agency Agreement, website-development and source records, and other existing native or source records identified in the Appendix Statement; for any unavailable native or source form, provide a verified explanation identifying the source searched and the collection, export, or conversion method;
5. Within ten calendar days, produce existing bank-generated records, ledgers, remittance records, and transaction records sufficient to verify the relevant incoming SIC payments and downstream payments Daynamez claims to have made, and serve verified transaction-level answers to Interrogatories Nos. 10 and 11 with supporting record citations;
6. Within ten calendar days, produce the DGS debt notice and identify or produce the referenced DGS HBL surrender copy if Daynamez intends to rely on those materials in support of a remaining defense or contention; otherwise, state in a signed response that it will not rely on them;
7. Within ten calendar days, serve a corrected final production inventory through DAYNAMEZ-000103 identifying each produced file or document category, Bates range, description, file format, source or custodian, production date, responsive RFP number or numbers, and whether a corresponding native or source file was produced;
8. Within ten calendar days, serve a declaration or verified supplemental response by Zia Kamali or another knowledgeable custodian identifying with reasonable specificity the sources, accounts, devices, repositories, and date ranges searched;

the collection, export, and conversion methods used; whether litigation-added annotations formed part of the original records; and whether any responsive native, source, original, or underlying records are unavailable, lost, deleted, destroyed, outside Daynamez's possession, custody, or control, or not produced;

9. Identify any document, contention, defense, alleged debt, damages category, or evidentiary matter that Daynamez withdraws, corrects, replaces, supplements, or will not rely upon;
10. Permit SIC to serve limited follow-up discovery directed solely to information or materials first produced or first adequately identified through the Order, subject to the existing discovery limits and schedule or further order of the Presiding Officer; and
11. Grant such other relief as the Presiding Officer deems just and appropriate.

SIC does not presently seek discovery sanctions, default, striking of defenses, evidentiary preclusion, or a merits determination concerning authenticity. SIC reserves the right to seek relief authorized by 46 C.F.R. § 502.150(b) if Daynamez fails to comply with an order compelling discovery or if later-developed facts warrant additional relief.

Dated: July 5, 2026

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



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VERIFICATION PURSUANT TO 28 U.S.C. § 1746

I, Nguyen Tien Phuong, am the Director and duly authorized representative of Southern International Co., Ltd. I have read the foregoing Motion. The factual statements concerning SIC's discovery requests, Daynamez's responses and production, and the parties' meet-and-confer communications are true and correct based on my personal knowledge and my review of SIC's business and litigation records.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 5, 2026, at Ho Chi Minh City, Vietnam.



Nguyen Tien Phuong
Director and Authorized Representative
Southern International Co., Ltd.



CERTIFICATE OF SERVICE

I certify that on July 5, 2026, a true and correct copy of the foregoing Motion, together with the accompanying Certification of Good-Faith Conference, Appendix, and companion native files identified as CMTC-NATIVE-0001 through CMTC-NATIVE-0004, was filed with the Office of the Secretary of the Federal Maritime Commission by electronic mail at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov, and was served by electronic mail upon counsel for Respondent and Respondent's representative at the following addresses:

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Dated: July 5, 2026.



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